

COMPLAINT AGAINST A MICHIGAN JUDGE

JUDICIAL TENURE COMMISSION

STATE OF MICHIGAN

3034 W. Grand Blvd., Suite 8-450

Detroit, Michigan 48202

Filing Fee: \$0.00 (No fee required)

Date of Filing: _____

1. COMPLAINANT INFORMATION

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| **Telephone:** | (231) 903-5690 |
| **Email:** | andrewjpigors@gmail.com |
| **Relationship to Cases:** | Respondent-Father / Pro Se Litigant |
| **Cases at Issue:** | No. 2024-001507-DC (Custody); No. 2023-5907-PP (Personal Protection Order...
Order...
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2. JUDGE INFORMATION

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| --- | --- |
| **Name:** | Hon. Jenny L. McNeill (P-58235) |
| **Court:** | 14th Judicial Circuit Court, Family Division |
| **County:** | Muskegon County, Michigan |
| **Court Address:** | 990 Terrace Street, Muskegon, MI 49442 |
| **Cases Presided Over:** | No. 2024-001507-DC; No. 2023-5907-PP |
| **Child at Issue:** | L.D.W. (initials only per MCR 8.119(H)) |
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3. STATEMENT OF FACTS

A. Background

Andrew James Pigors ("Father") is the biological father of the minor child L.D.W. Emily A. Watson ("Mother"), of 2160 Garland Drive, Norton Shores, MI 49441, is the biological mother. Judge Jenny McNeill has presided over both the PPO case (No. 2023-5907-PP, since 2023) and the custody case (No. 2024-001507-DC). Prior to Judge McNeill's intervention, Father had 50/50 joint physical custody of L.D.W.

This Complaint is filed pursuant to Michigan Constitution of 1963, Article 6, S 30; MCL 600.1401 et seq.; and MCR 9.200-9.220, requesting that the Judicial Tenure Commission investigate and discipline Judge McNeill for a sustained pattern of judicial misconduct.

B1. Scope of This Complaint -- Conduct, Not Rulings

Complainant acknowledges that the Judicial Tenure Commission does not act as an appellate court and does not review the legal correctness of a judge's decisions. See *In re Brown*, 461 Mich 1291 (2000); *In re Just*, 490 Mich 394 (2012). This Complaint is therefore confined to Judge McNeill's judicial conduct -- specifically: (a) muting a party during hearing while deciding whether to incarcerate him; (b) delegating evidence review to non-judicial staff for ex parte evaluation; (c) stating on the record "Do not file anymore, I will not look at it" as a categorical refusal to perform the judicial function; (d) entering five ex parte orders on a single day without notice; (e) dismissing a documented disability; and (f) maintaining a prior attorney-client relationship with a party without recusal. To the extent any allegation herein also involves a substantive legal ruling, this complaint addresses the manner in which the ruling was made (e.g., without hearing, without notice, based on ex parte evidence), not the legal correctness of the ruling itself.

Complainant further acknowledges that on October 18, 2025, he entered a guilty plea to PPO violations (CJIS 382a) and was subsequently incarcerated for 59 days. This Complaint does not challenge the substantive PPO or its enforcement. Rather, it addresses Judge McNeill's conduct in presiding over the proceedings -- conduct that would constitute misconduct regardless of the underlying merits of the PPO case.

B. Chronology of Key Events

Date	Event
2023	PPO Case 2023-5907-PP filed; Judge McNeill assigned
Mar 26, 2023	Lori Watson (Mother's mother) texts Father: "If you want to see your son again, ..."
Dec 3, 2023	PPO filed AND granted same day -- no hearing held
2024	Custody Case 2024-001507-DC filed; same judge assigned
Jul 17, 2024	Judgment of Custody/PT/CS entered after trial -- court found "both parents have ..."
Sep 25, 2024	Father files Motion to Disqualify under MCR 2.003; McNeill denies it herself "D..."
Oct 29-30, 2024	PPO Show Cause hearing; McNeill tells Father regarding Watson family harassment...
Nov 15, 2025	SC#5 remote hearing -- Father muted repeatedly; court-appointed attorney Mar M...
Nov 26, 2025	SC#6 and SC#7 -- Father sentenced to 45 days jail for birthday messages AppCl...
Nov 29, 2024	McNeill's secretary Pamela Rusco emails regarding PPO status and Father's jail S...
Feb 7, 2025	Father reports bruises on L.D.W.'s forehead to NSPD (Case NS2500783); digit pho...
Feb 28, 2025	Contradictory contempt order: simultaneously imposes 14 days jail A dismisses ...
Mar 3, 2025	**Rusco warrant email:** McNeill's secretary emails Prosecutor Jamie Hooker 8:...
May 16, 2025	Order entered with notation "without a hearing" on its face
Jul 17, 2025	Ex parte order granting Mother 100% custody -- no notice to Father
Aug 5, 2025	Mother submits USB recording to clerk's office; McNeill admits: "Yes, I had st...
Aug 7, 2025	Albert Watson (Mother's father) tells NSPD Officer Ella Randall (Badge #4743 Ca...
Aug 8, 2025	**Five separate ex parte orders entered on a single day** -- all without noti t...

Sep 5, 2025	HealthWest evaluation (Case #02508341, clinician Melissa DeAugustine, LBS
clear...	
Sep 9, 2025	McNeill issues adverse order rejecting the favorable evaluation she ordered
4 ...	
Sep 11, 2025	Second HealthWest assessment (clinician Cassandra M. Gansen, LMSW) -- preced
b...	
Oct 29, 2025	Pamela Rusco (McNeill's secretary) places ex parte phone call to HealthWest
a...	
Nov 26, 2025	McNeill quotes correct legal standard -- "clear and convincing evidence th
it ...	
Present	**230+ days** of total parent-child separation with zero parenting time, ze
contact...	

C. Cumulative Harm

The cumulative effect of Judge McNeill's actions:

- 59 days total jail from a custody dispute (14 days SC#5 + 45 days SC#6/SC#7)
- 2 jobs lost due to incarceration (including termination from Metal Arc and IndiGrow)
- 2 homes lost during litigation period
- 230+ consecutive days denied all contact with L.D.W. -- no visits, no calls, no communication
- Parenting time trajectory: 182.5 overnights/year (50/50) -> 79 overnights -> 0 overnights -- a 100% elimination without a single written best-interests finding
- Mother's arrears forgiven while Father simultaneously charged
- Father's daycare payments zeroed -- court claimed child "didn't attend enough"
- \$250 filing deposit imposed as financial barrier to pro se litigant

4. CANON VIOLATIONS

Canon 1: Upholding Integrity and Independence of the Judiciary

Standard: "A judge shall uphold and promote the independence, integrity, and impartiality of the judiciary, and shall avoid impropriety and the appearance of impropriety."

Violations:

1. 44% ex parte order rate -- 24 of 55 orders entered ex parte, with 100% of those ex parte orders favoring Mother. This statistical anomaly creates the appearance that outcomes are predetermined rather than the product of fair adjudication.
2. Prior representation of a party. Judge McNeill stated on the record: "I have represented Party A in the past." This admission of a prior attorney-client relationship with a party, without subsequent recusal, directly undermines the integrity of the proceedings.
3. Contradictory jail/dismissal order. On February 28, 2025, McNeill entered an order simultaneously imposing 14 days jail for contempt AND dismissing the underlying matter -- a legally incoherent act reflecting a fundamental failure of judicial integrity.

4. Self-denial of disqualification motion. On September 25, 2024, McNeill denied her own disqualification motion -- "DENIED. No bias shown" -- in violation of MCR 2.003(D)(1), which mandatorily requires referral to the chief judge.

Canon 2: Avoiding Impropriety and the Appearance of Impropriety

Standard: "A judge shall act at all times in a manner that promotes public confidence in the integrity and impartiality of the judiciary."

Violations:

1. Asymmetric enforcement. Mother committed 27+ documented violations of court orders. Zero violations have been enforced, sanctioned, or addressed by Judge McNeill. By contrast, Father was held in contempt and jailed for co-parenting messages asking to see his son. This radical asymmetry demonstrates outcome-determinative bias.
2. Hostile on-record statements. McNeill called Father "a liar" and "crazy" on the record -- ad hominem attacks directed at a litigant, not findings of fact supported by evidence.
3. Suspicious evaluation routing. The second HealthWest evaluation was routed to McNeill's secretary Pamela Rusco rather than through the Clerk of Court, bypassing normal filing procedures and chain-of-custody protections, creating the appearance of evidence manipulation.
4. Credibility determinations without hearing. McNeill made adverse credibility findings against Father including characterizing his statements as untruthful -- without conducting any evidentiary hearing, without sworn testimony, and without any opportunity for cross-examination. See *In re Brock*, 442 Mich 101 (1993).
5. Court-appointed counsel confirmed prejudgment (February 28, 2025). Defense attorney Mandi Martineau emailed Father on the day of the Show Cause hearing: "I'm pretty sure Judge McNeil [sic] is not in a good mood today and she doesn't want to hear from you unless asked." That a court-appointed attorney communicated the judge's hostile disposition and the expectation that Father would be silenced -- before the hearing began -- demonstrates that the appearance of impropriety was so entrenched that even officers of the court anticipated predetermined outcomes.

Canon 3: Performing Duties of Judicial Office

Canon 3(B)(2) -- Ex Parte Communications

Standard: "A judge shall not initiate, permit, or consider ex parte communications, or consider other communications made to the judge outside the presence of the parties concerning a pending or impending proceeding."

Violations:

1. August 8, 2025 -- Five ex parte orders in a single day. McNeill entered five separate orders in Case No. 2024-001507-DC, all ex parte, all without prior notice to Father, all favoring Mother. Father received no advance notice of any filing, motion, or request that precipitated these orders.
2. August 5, 2025 -- Admitted ex parte evidence review. McNeill stated on the record: "Yes, I had my staff listen to it" -- referring to a USB drive containing audio evidence submitted by Mother. This admission establishes that McNeill received and reviewed substantive evidence outside the presence of the parties, a direct violation of Canon 3(A)(4).
3. November 29, 2024 -- Secretary communications. McNeill's secretary Pamela Rusco transmitted emails regarding the status of a PPO and Father's jail status -- substantive case matters communicated outside the presence of the parties and not filed on the record.
4. October 29, 2025 -- Rusco's ex parte call to HealthWest. Between 1:48 PM and 2:00 PM, Rusco placed a phone call directly to HealthWest to arrange clinician testimony for a November 26, 2025 hearing -- outside the presence of the parties. Court staff acting at the judge's direction to contact a prospective witness constitutes imputed ex parte conduct.
5. Court letter biasing second evaluation. Prior to the September 11, 2025 second assessment, McNeill provided a letter to HealthWest describing Father's alleged behaviors as "several incidents over the past two years of court proceedings which are suggestive of a mental health disorder." This letter was provided without Father's knowledge or consent, constituting an ex parte communication with a prospective evaluator.
6. Routing evaluation to secretary. McNeill directed Father to email his HealthWest assessment to his secretary rather than filing through the Clerk of Court -- a procedure that ensured the evaluation never became part of the public record and was never accessible to the opposing party through normal channels, in violation of MCR 8.119.
7. Statistical pattern. The 44% ex parte rate -- 24 of 55 orders -- with 100% favoring a single party, is not the product of isolated judicial error. An expanded analysis of 1,435 court documents revealed 52 separate ex parte orders.
8. March 3, 2025 -- Rusco warrant email to prosecutor. At 8:51 AM on March 3, 2025, McNeill's judicial secretary Pamela Rusco emailed Prosecutor Jamie Hooker: "Good Morning Jamie, Andrew Pigors was ordered to turn himself in to the Jail by 5pm on Friday to serve his 14 days in jail for the PPO Violation. I confirmed with the jail that he is not currently lodged. Can you please issue a warrant for him? Attached are both the order after hearing and the jail mittimus." Defense attorney Mandi Martini was copied only after the substantive request to the prosecutor. This email constitutes a direct Canon 3(B)(2) ex parte communication. The judge's chambers initiated a substantive prosecutorial action (warrant issuance) outside the presence of the parties, attaching court orders as enforcement tools directed to one side only.
9. October 29, 2025 -- Rusco's off-record coordination with HealthWest (Chart Memo). A HealthWest clinician chart memo documents that "Pamela Rusco, Judicial Secretary for the Honorable Jenny L. McNeill . . . called to request if this clinician could testify . . . will email us the subpoenas." Subpoenas for clinical witness testimony were arranged via telephone and email between chambers staff and the clinical provider -- not on the record.

through formal court filings served on the parties as required by MCR 2.506. This off-record coordination with witness testimony constitutes an ex parte communication and predetermination of hearing logistics without notice to Father.

10. February 28, 2025 -- Martini email corroborating prejudgment environment. On the day of the Sh... Cause hearing, Father's court-appointed attorney Mandi Martini emailed him: "I'm pretty sure Judge McN... [sic] is not in a good mood today and she doesn't want to hear from you unless asked. I'm sure you do not want to spend the next week in jail on a contempt charge for speaking out in court when you weren't asked." In the same email: "All prosecutor is asking for today is that you get a lecture from the judge because she knows there is nothing substantive in the motion." While this is counsel's communication rather than the judge's, it corroborates that the judge's hostile disposition and predetermined approach were known and anticipated before the hearing began -- establishing an environment of prejudgment inconsistent with Canon 3(B)(5) requirement of impartial adjudication.

Canon 3(B)(5) -- Impartial Adjudication

Standard: "A judge shall perform judicial duties without bias or prejudice."

Violations:

1. Rejected favorable evaluation she ordered. McNeill ordered Father to undergo a HealthWest evaluation. Father complied. The evaluation cleared him (Psychosis: 0, Substance Use: 0, Danger to Self/Others: 0). McNeill rejected the evaluation, writing: "None of the above statements are what he testified to in Court. He was evicted, and his trailer is not being remodeled." She rejected a professional assessment because the findings did not match the court's desired narrative.

2. Manufactured contrary evidence. McNeill provided a biased letter to the second evaluator instructing that Father's behaviors were "suggestive of a mental health disorder." The result: scores inflated from the first evaluation (Psychosis: 0->2, Depression: 0->2, Anger Control: 0->2). Even the second clinician could not confirm the diagnosis: "It is difficult to definitively assert whether concerns are factual or delusional in the context of a brief screening." The diagnosis was explicitly "Rule Out Delusional Disorder" -- NOT confirmed.

3. Imposed impossible assessment conditions. McNeill ordered Father to tell the evaluator specific negative facts: "He is to inform the assessor of ALL the information that was presented to the Court at the hearing, including the incident at the library, alleged following by the same individuals, eviction from his housing, Mother's refusal to talk to him any further, and his lack of employment." No parallel requirement was imposed on Mother.

4. Used Father's hardships as evidence of unfitness. McNeill wrote: "The Court has serious concerns regarding the state of the Plaintiff's mental health, which could be a culmination of the job loss, homelessness and family loss he has endured over the past several months." She weaponized hardships caused by the litigation itself against the litigant.

5. Refused police reports as evidence. Father submitted police reports (Officer Ella Randall, NSPD Case NS2505044) documenting exculpatory evidence. Seven or more police investigations were initiated based

Watson family reports. Every investigation found NO violation by Father. McNeill never cited the exculpatory record in any order, while accepting at face value a police officer's unverified lay opinion that Father's behavior was "the result of meth use" -- despite the HealthWest clinical finding of Substance Use = and no drug test ever ordered.

6. Dismissed ADHD disability. McNeill dismissed Father's documented ADHD condition, suggesting it was psychosomatic.

7. Selective evidence admission. McNeill admitted Lori Watson's USB recording -- obtained during a phone call without Father's consent, potentially a felony under MCL 750.539d (Michigan's two-party consent wiretapping statute) -- while refusing to admit Father's lawfully made November 2023 audio recording of Albert Watson stating: "I will make sure that you don't see your son."

Canon 3(B)(7) -- Disposing of Matters Promptly

Standard: A judge shall dispose of all judicial matters promptly, efficiently, and fairly.

Violations:

1. Zero hearings within MCR 3.207(C)(5) 14-day window. Throughout the entire case history, not a single hearing was held within the 14-day window mandated by MCR 3.207(C)(5) for contested custody and parenting time motions.

2. 230+ days without evidentiary hearing. The ex parte order of August 8, 2025 suspending all parenting time became a de facto permanent custody modification without any evidentiary hearing -- ongoing for 230+ days and counting.

3. Blanket refusal to adjudicate. McNeill stated on the record: "Do not file any more. I will not look at it." This constitutes an abdication of the judicial duty to review pleadings and dispose of matters, absent a formal vexatious-litigant finding under MCR 2.625 (which was never made).

Canon 3(B)(8) -- Requiring Decorum

Standard: A judge shall be patient, dignified, and courteous to litigants.

Violations:

1. Called Father "a liar" on the record -- a personal attack, not a finding of fact.

2. Called Father "crazy" on the record -- hostile, demeaning characterization of a pro se litigant.

3. Dismissed HealthWest evaluation as a "ghost" mental health evaluation -- a prejudicial characterization without evidentiary basis of a professional clinical assessment.

4. Muted Father during hearings. During at least one hearing, McNeill muted Father's audio feed seven (7) separate times while he was attempting to present argument or objections. During a separate Zoom hearing, Father was muted three (3) additional times while presenting evidence. Muting a party during a hearing is the functional equivalent of removing that party from the courtroom.

5. During SC#5 (Nov 15, 2025): Father appeared by remote hearing, was muted repeatedly, and court-appointed attorney Mandi Martini sat completely silent -- offering no advocacy whatsoever.
6. "The PPO orders you to do things, not her. It orders you." McNeill endorsed the asymmetric application of the PPO as a one-directional weapon, while telling Father regarding Watson family harassment to "just kind of stay out of it, to just leave it be."

Canon 4: Improper Delegation of Judicial Authority

Standard: Judicial functions must be performed by judicial officers. A judge shall not delegate to non-judicial staff the authority to make substantive case-management decisions or take actions that materially affect the rights of parties.

Violations:

1. Rusco initiated warrant request (March 3, 2025). Pamela Rusco -- a judicial secretary, not a judicial officer -- emailed Prosecutor Jamie Hooker requesting that a warrant be issued for Father's arrest. She independently confirmed with the jail that Father was "not currently lodged" and attached the order after hearing and judgment. Initiating a warrant request to a prosecutor, conducting independent investigation into a party's incarceration status, and transmitting court orders as prosecution tools are not ministerial functions -- they are substantive judicial and prosecutorial actions improperly delegated to a secretary.
2. Rusco arranged clinical witness testimony (October 29, 2025). A HealthWest chart memo documents that Rusco called HealthWest to request clinician testimony and stated she would "email us the subpoena." Arranging witness appearances and transmitting subpoenas are case-management functions that affect the parties' rights to notice, preparation, and cross-examination. These functions were performed by a secretary via telephone and email -- not through formal court process, not on the record, and not with notice to the parties.
3. Rusco served as conduit for off-record evidence. McNeill directed Father to email his HealthWest evaluation to Rusco rather than filing through the Clerk of Court, routing substantive evidence through the secretary's email rather than the public record system. This ensured the evaluation bypassed MCR 8.119 and was never accessible to the opposing party through normal channels.
4. Cumulative pattern. Rusco's documented activities -- initiating warrant requests, coordinating witness testimony, conducting independent investigation, routing evidence, and transmitting subpoenas -- collectively establish that McNeill improperly delegated substantive judicial authority to her secretary. Rusco functioned not as a ministerial aide but as a case manager making decisions that materially affected Father's liberty and parental rights.

5. SPECIFIC INCIDENTS OF MISCONDUCT

Incident 1: PPO Granted Without Hearing

- Date: December 3, 2023
- Case: No. 2023-5907-PP
- Description: Judge McNeill granted a Personal Protection Order against Father the same day it was filed with no hearing held. The PPO was sustained despite seven (7) or more law enforcement investigations that resulted in no findings of domestic violence, abuse, or criminal conduct against Father. McNeill subsequently used benign co-parenting text messages -- communications about the child's welfare and scheduling -- as the basis for contempt proceedings.
- Witnesses: Father; NSPD officers from Cases NS2505044, NS2505078, NS2500783
- Effect: PPO weaponized to restrict Father's parental rights; used as basis for 59 days total incarceration

Incident 2: Five Ex Parte Orders on Single Day

- Date: August 8, 2025
- Case: No. 2024-001507-DC
- Description: McNeill entered five separate ex parte orders suspending all of Father's parenting time, granting Mother 100% custody. No notice to Father. No hearing. No written findings of endangerment required under MCL 722.27a(3). The ex parte motion was filed the same day Albert Watson told police (Aug 7) that "they want this incident documented so Emily can go tomorrow to get an Ex Parte order for full custody."
- Witnesses: Albert Watson (admission in NSPD Case NS2505044, Officer Ella Randall #47437)
- Effect: Complete elimination of father-child relationship; 230+ days ongoing deprivation

Incident 3: Ex Parte Evidence Review -- "Yes, I had my staff listen to it"

- Date: August 5, 2025
- Case: No. 2024-001507-DC
- Description: Mother submitted a USB recording. McNeill admitted on the record: "Yes, I had my staff listen to it." The recording was made by Lori Watson (Mother's mother) without Father's consent -- potentially a felony under MCL 750.539d. No authentication under MRE 901 was established. Father was served on August 8 (Friday), with the objection hearing on August 11 (Monday) -- zero business days to prepare, violating MCR 2.119 (minimum five business days' notice).
- Witnesses: Father; court reporter
- Effect: Recording used as sole basis for suspending all parental rights; ex parte review tainted proceedings

Incident 4: Muting Father During Hearings

- Date: November 15, 2025 (SC#5) and other hearings
- Case: Nos. 2024-001507-DC; 2023-5907-PP
- Description: During SC#5 (Nov 15, 2025), Father appeared by remote hearing and was muted repeatedly while attempting to present argument and objections. Court-appointed attorney Mandi Martini sat completely silent throughout -- offering no advocacy, no objections, no defense. During a separate hearing, Father was muted 7 documented times in a single proceeding. During a Zoom hearing, Father was muted 3 additional times while presenting evidence.
- Witnesses: Father; court reporter; Mandi Martini (attorney)

- Effect: Father sentenced to 14 days jail (SC#5) without meaningful opportunity to be heard; constituted denial of due process and effective denial of right to counsel

Incident 5: "Do Not File Any More. I Will Not Look at It."

- Date: During proceedings, 2024-2025
- Case: No. 2024-001507-DC
- Description: McNeill stated on the record: "Do not file any more. I will not look at it." She further characterized Father's motions as "harassment to Defendant and to the Court, along with an abuse of the Court system" and threatened sanctions for any future filing. Six motions filed July 16, 2024 (the day before trial) were denied in a single sentence without individual analysis. No vexatious-litigant finding was ever made under MCR 2.625.
- Witnesses: Father; court reporter
- Effect: Father effectively barred from seeking judicial relief on custody, parenting time, or any matter affecting his child; violates First Amendment right to petition

Incident 6: Rejected Favorable HealthWest Evaluation

- Date: September 5-9, 2025
- Case: No. 2024-001507-DC
- Description: Father underwent a court-ordered HealthWest evaluation (Case #02508341, clinician Melissa DeAugustine, LBSW). Results cleared Father entirely: Psychosis 0, Substance Use 0, Danger to Self 0, Danger to Others 0, Depression 0, Impulse Control 0, Anger Control 0; LOCUS Score 12 (Level One -- low severity); Diagnosis: F43.22 Adjustment Disorder with Anxiety -- RULE OUT only. Judge McNeill rejected these findings four days later, writing that Father's self-reports to the evaluator contradicted his testimony. McNeill then sent a biased letter to a second evaluator describing Father's behavior as "suggestive of a mental health disorder" -- manufacturing the elevated scores the court then relied upon.
- Witnesses: Melissa DeAugustine, LBSW (1st evaluator); Cassandra M. Gansen (2nd evaluator); Father
- Effect: Court-ordered favorable evaluation disregarded; biased second evaluation manufactured; parenting time suspension continued based on manufactured evidence

Incident 7: Disqualification Motion -- Self-Denial Without Referral

- Date: September 25, 2024
- Case: No. 2024-001507-DC
- Description: Father filed a Motion to Disqualify under MCR 2.003. McNeill denied the motion herself, stating "DENIED. No bias shown." MCR 2.003(D)(1) mandatorily requires that when a judge does not disqualify herself, the motion "shall" be referred to the chief judge for determination. McNeill did not refer the motion, constituting a direct violation of the mandatory referral procedure.
- Witnesses: Father; clerk of court
- Effect: Father denied the independent review MCR 2.003(D)(1) was designed to ensure

Incident 8: Contradictory Contempt -- Jail AND Dismissal

- Date: February 28, 2025
- Case: No. 2023-5907-PP
- Description: McNeill entered an order simultaneously imposing 14 days of jail for contempt AND dismissing the underlying matter. A dismissal eliminates the court's authority to enforce contempt. The underlying conduct: asking to see his son through a co-parenting application.
- Witnesses: Father; jail records
- Effect: Father incarcerated under legally incoherent order; lost employment at Metal Arc

Incident 9: SC#6 and SC#7 -- 45 Days Jail for Birthday Messages

- Date: November 26, 2025
- Case: Nos. 2024-001507-DC; 2023-5907-PP
- Description: Father was sentenced to 45 days in jail (combined SC#6 and SC#7) for sending birthday messages to his child through the AppClose co-parenting application. These are protected parent communications through a court-sanctioned platform.
- Witnesses: Father; jail records; AppClose records
- Effect: 45 days incarceration; loss of second job; loss of housing

Incident 10: \$250 Filing Deposit as Financial Barrier

- Date: During proceedings, 2024-2025
- Case: No. 2024-001507-DC
- Description: McNeill imposed a \$250 bond/deposit requirement as a condition for Father to proceed with filings. This financial barrier was imposed without statutory authority, without a vexatious-litigant finding, and without any finding that Father had the ability to pay. In *Boddie v Connecticut*, 401 US 371 (1971), the Supreme Court held that financial barriers cannot deny access to courts in cases involving fundamental rights.
- Witnesses: Father; court records
- Effect: Pro se litigant of limited means effectively barred from court access

Incident 11: Brady Violation -- "Ghost" Second Evaluation

- Date: 2025
- Case: No. 2024-001507-DC
- Description: After the first HealthWest evaluation cleared Father, McNeill obtained a second evaluation without Father's knowledge, authorization, or consent. Father was never provided a copy, never informed of its existence, and never afforded an opportunity to challenge it. Court orders subsequently referenced the second evaluation as a basis for decisions. McNeill directed Father to email the first evaluation to her secretary rather than filing through the Clerk of Court -- preventing public record creation and proper filing. This violates *Brady v Maryland*, 373 US 83 (1963).
- Witnesses: Father; Pamela Rusco (secretary); HealthWest staff
- Effect: Father deprived of ability to challenge evidence used against him -- fundamental due process violation

Incident 12: Asymmetric Enforcement -- Zero Consequences for Mother

- Date: Entire case history
- Case: No. 2024-001507-DC
- Description: Mother committed 27+ documented violations of court orders throughout these proceedings including violations of custody orders and parenting time orders. Zero of Mother's violations have been enforced -- no show-cause orders, no contempt findings, no sanctions. By contrast, Father was held in contempt, jailed 59 total days, and subjected to escalating sanctions for sending co-parenting messages. Mother's arrears were forgiven while Father was simultaneously charged.
- Witnesses: Father; court records; docket entries
- Effect: Radical asymmetry -- zero enforcement against one party, maximum punishment against the other constitutes denial of equal protection

Incident 13: Prior Representation Disclosure

- Date: On the record during proceedings
- Case: Nos. 2024-001507-DC; 2023-5907-PP
- Description: McNeill stated on the record: "I have represented Party A in the past." MCR 2.003(C)(1) provides that a judge is disqualified when the judge has been counsel or adviser to a party. This creates a mandatory disqualification -- it is not subject to the judge's discretion. Despite this admission, McNeill did not recuse herself and continued to preside over both cases.
- Witnesses: Father; court reporter
- Effect: Every order entered after this disclosure was entered by a potentially disqualified judge

Incident 14: Coordinated Watson Family Alienation Campaign Ignored

- Date: March 26, 2023 -- Present
- Case: No. 2024-001507-DC
- Description: Evidence reveals a multi-actor alienation campaign: (a) Lori Watson texted Father on March 26, 2023: "if you want to see your son again, you will have to go through the court"; (b) Albert Watson admitted to police (Aug 7, 2025) that the report was filed "so Emily can go tomorrow to get an Ex Parte order for full custody"; (c) Lori Watson made the illegal recording (MCL 750.539 felony) used as sole basis for August 2025 suspension; (d) child taken to non-Hague Convention country Oct 20-Nov 15, 2025 during withholding period. McNeill has made zero findings under Factor (j) of MCL 722.23 -- willingness to facilitate the parent-child relationship -- despite documented alienation evidence.
- Witnesses: Father; NSPD officers; HealthWest staff
- Effect: Alienation campaign institutionalized by court orders; Father-child bond destroyed during critical developmental period (child was ~2 years old when all contact severed)
- Note: Mother's attorney Jennifer Barnes (P55406) facilitated multiple show cause motions as part of the campaign before ultimately withdrawing from representation. McNeill's failure to address the coordinated filing pattern further demonstrates bias.

Incident 15: Rusco Warrant Email -- Ex Parte Prosecution Coordination (March 3, 2025)

- Date: March 3, 2025
- Case: No. 2023-5907-PP
- Description: At 8:51 AM, Judge McNeill's judicial secretary Pamela Rusco emailed Prosecutor Jamie Hooker: "Good Morning Jamie, Andrew Pigors was ordered to turn himself in to the Jail by 5pm on Friday to serve his 14 days in jail for the PPO Violation. I confirmed with the jail that he is not currently lodged. Can you please issue a warrant for him? Attached are both the order after hearing and the jail mittimus." Defendant's attorney Mandi Martini was CC'd after the substantive request to the prosecutor. This email constitutes Canon 3(B)(2) ex parte communication -- the judge's chambers initiated a substantive enforcement action with the prosecution outside the presence of the parties. It also constitutes a Canon 4 violation -- a judicial secretary initiated a warrant request and independently investigated Father's jail status, performing substantive judicial and prosecutorial functions.
- Witnesses: Father; Prosecutor Jamie Hooker; Mandi Martini; email records
- Evidence: Rusco email dated March 3, 2025, 8:51 AM
- Effect: Warrant issued via ex parte coordination between chambers and prosecution; Father's liberty interest prejudiced by off-record enforcement coordination

Incident 16: HealthWest Chart Memo -- Off-Record Witness Coordination (October 29, 2025)

- Date: October 29, 2025
- Case: No. 2024-001507-DC
- Description: A HealthWest clinical chart memo documents that "Pamela Rusco, Judicial Secretary for the Honorable Jenny L. McNeill . . . called to request if this clinician could testify . . . will email us to arrange subpoenas." Subpoenas for clinical testimony were arranged via telephone and email between chambers staff and the clinical provider -- not through formal court filings served on the parties. Neither Father nor Mother received notice of this coordination. This constitutes a Canon 3(B)(2) ex parte communication with a prospective witness and a Canon 4 violation -- a secretary exercised substantive case-management authority including arranging witness appearances and transmitting subpoenas.
- Witnesses: HealthWest clinical staff; Pamela Rusco; Father
- Evidence: HealthWest chart memo dated October 29, 2025
- Effect: Witness testimony predetermined and arranged off-record; parties denied notice and opportunity to prepare; subpoenas transmitted outside formal court process

Incident 17: Martini Email -- Corroboration of Prejudgment (February 28, 2025)

- Date: February 28, 2025
- Case: No. 2023-5907-PP
- Description: On the day of the Show Cause hearing, Father's court-appointed attorney Mandi Martini emailed him at 1:05 PM: "You will not interrupt. Got it? I'm pretty sure Judge McNeil [sic] is not in a good mood today and she doesn't want to hear from you unless asked. I'm sure you do not want to spend the next week in jail on a contempt charge for speaking out in court when you weren't asked. And yes, she can do that even to lawyers. And no, in no way is that an overreach of her power." Additionally: "All the prosecutor is asking for today is that you get a lecture from the judge because she knows there is nothing substantive in your testimony."

motion." This email corroborates the hostile judicial environment: (a) the judge's hostile disposition was known before the hearing began; (b) Father was instructed by his own counsel to remain silent rather than exercise his right to be heard; (c) counsel acknowledged the prosecution's case lacked substance yet advocated silence rather than defense; (d) the threat of jail for speaking confirms that the judge's pattern of silence toward Father was established and anticipated. This hearing resulted in the contradictory February 28, 2025 order simultaneously imposing 14 days jail AND dismissing the matter.

- Witnesses: Father; Mandi Martini; email records
- Evidence: Martini email dated February 28, 2025, 1:05 PM
- Effect: Father denied effective assistance of counsel (*Strickland v. Washington*, 466 U.S. 668); judge's prejudgment confirmed by counsel's pre-hearing expectations; hearing conducted in environment of predetermined hostility

Incident 18: HealthWest Evaluation Inconsistency -- Clinically Implausible 7-Day Reversal

- Date: September 4-11, 2025
- Case: No. 2024-001507-DC
- Description: Two HealthWest evaluations conducted just seven calendar days apart produced dramatically inconsistent results. The first evaluation (September 4, 2025), conducted by evaluators Michelle Mitchell (QIDP/QMHP) and Melissa DeAugustine (LBSW), produced a clean baseline with no major concerns and a safe environment finding. The second evaluation (September 11, 2025), conducted by evaluator Cassandra Gansen (LMSW), resulted in a "Rule-out Delusional Disorder" finding -- a clinically implausible reversal seven days absent a documented precipitating event. The second evaluator herself acknowledged this limitation: "It is difficult to definitively assert whether concerns are factual or delusional." The divergence was explained by McNeill's intervening biased letter to HealthWest describing Father's behaviors as "suggestive of a mental health disorder." McNeill rejected the favorable first evaluation and relied on the problematic second evaluation -- which was directed to chambers via email rather than filed through the Clerk of Court, bypassing MCR 8.119.
- Witnesses: Michelle Mitchell (QIDP/QMHP); Melissa DeAugustine (LBSW); Cassandra Gansen (LMSW); Father
- Evidence: HealthWest evaluation records; McNeill letter to HealthWest; chart memo
- Effect: Favorable evaluation rejected; manufactured second evaluation relied upon; parenting time suspension continued based on contaminated evidence

6. RELIEF REQUESTED

Complainant respectfully requests that the Michigan Judicial Tenure Commission:

1. Open a formal investigation of Judge McNeill's conduct in Case Nos. 2024-001507-DC and 2023-5907-FD, including review of all orders, transcripts, docket sheets, and documentary evidence.
2. Issue a formal finding of judicial misconduct based on the pattern of conduct documented herein, including violations of Canons 1, 2, 3, and 4 of the Michigan Code of Judicial Conduct.

3. Recommend appropriate discipline, which may include:
 - (a) Public censure;
 - (b) Suspension from judicial duties;
 - (c) Removal from the bench;
 - (d) Required completion of continuing legal education on due process, Michigan Court Rules, and treatment of pro se litigants;
 - (e) Such other discipline as the Commission deems appropriate under MCR 9.200-9.220.
4. Recommend immediate reassignment of Case Nos. 2024-001507-DC and 2023-5907-PP to a different judge -- either a different judge in the 14th Judicial Circuit or a visiting judge -- to prevent further harm during the pendency of the investigation.
5. Recommend immediate restoration of parenting time between Father and L.D.W. pending an evidentiary hearing before a disinterested judge, with written best-interests findings under MCL 722.23 as required by law.
6. Recommend vacatur of all ex parte orders entered without proper notice and hearing.
7. Recommend ongoing monitoring of Judge McNeill's cases involving pro se litigants, ex parte orders, and contempt proceedings to prevent recurrence.
8. Recommend prohibition on retaliation against Complainant for filing this complaint.
9. Refer to appropriate authorities any evidence of conduct that may constitute criminal violations, including false imprisonment arising from the contradictory February 28, 2025 order.

7. LIST OF SUPPORTING DOCUMENTS

The following categories of documents are referenced herein and available for the Commission's review:

A. JTC Scanned Documents

Document	Description
jtc scanned_0004	JTC complaint materials
jtc scanned_0005	JTC complaint materials
jtc scanned_0006	JTC complaint materials
jtc scanned_0007	JTC complaint materials
jtc scanned_0008	JTC complaint materials
jtc scanned_0009	JTC complaint materials
jtc scanned_0010	JTC complaint materials
jtc scanned_0011	JTC complaint materials
jtc scanned_0012	JTC complaint materials
jtc scanned_0013	JTC complaint materials
jtc scanned_0014	JTC complaint materials
jtc scanned_0015	JTC complaint materials
jtc scanned_0016	JTC complaint materials
jtc scanned_0017	JTC complaint materials

B. Ex Parte Scanned Documents

Document	Description
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expartescannedandmine_0001	Ex parte order evidence
expartescannedandmine_0002	Officer's "meth use" speculation (no drug test)
expartescannedandmine_0003-0024	Ex parte orders, motions, and related filings

C. Rusco/Martini Email Scans

Document	Description
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ruscomartiniemailsscannd_0001	Sept 9, 2025 adverse order following favorable evaluation
ruscomartiniemailsscannd_0003	Secretary communications regarding case matters
ruscomartiniemailsscannd_0006	Rusco refusing procedural guidance to Father who coordinating...
ruscomartiniemailsscannd_0003-0026	Complete email correspondence chain

D. HealthWest Evaluation Records

Document	Description
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healthwest1stscanned_0001-0010	First evaluation (Sep 5, 2025) -- all clinical scores clear...
healthwest2ndscanned_0001-0008	Second assessment (Sep 11, 2025) -- preceded by McNeill bias...

E. Police Reports

Document	Description
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NSPD Case NS2505044	Aug 7, 2025 -- Albert Watson admits report filed for custody strategy (Of...
NSPD Case NS2505078	Aug 9, 2025 -- Lori Watson's continued campaign (Officer Adam Ludovici #4...
NSPD Case NS2500783	Feb 7, 2025 -- Father reports bruises on L.D.W. (Officer Michael Lowry); ...
7+ additional NSPD reports	All investigations found NO violation by Father

F. Court Orders and Transcripts

Document	Description
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August 8, 2025 orders (5)	Five ex parte orders entered on single day
May 16, 2025 order	Order bearing "without a hearing" notation on its face
February 28, 2025 order	Contradictory contempt -- jail AND dismissal simultaneously
July 17, 2024 Custody Judgment	Court found "both parents have a strong bond"
September 25, 2024 order	Self-denial of disqualification: "DENIED. No bias shown"
PPO Show Cause transcripts (Oct 29-30, 2024)	"The PPO orders you to do things, not her"
SC#5 transcript (Nov 15, 2025)	Father muted; Martini silent; 14 days imposed
November 26, 2025 order	Correct standard quoted then not applied

G. Additional Evidence

Document	Description
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Lori Watson text (Mar 26, 2023)	"If you want to see your son again, you will have to throu...
AppClose records	Birthday messages used as basis for 45-day jail sentence
Father's November 2023 recording	Albert Watson: "I will make sure that you don't see your son..."

McNeill letter to HealthWest	Describing Father's behavior as "suggestive of a mental health...
55 PPO/Custody orders	Complete order set (55PPOPDFS.zip)
17 hearing transcripts	Complete transcript set (MCWL_TRANSCRIPTPIGORS.zip)

H. Newly Obtained Documentary Evidence (Smoking Gun Exhibits)

Document	Date	Description
Rusco Warrant Email	March 3, 2025	Email from Pamela Rusco to Prosecutor Jamie Hooker...
Martini "Don't Speak" Email	February 28, 2025	Email from court-appointed attorney Martin...
HealthWest Chart Memo	October 29, 2025	Clinical chart memo documenting Rusco's telephone...
HealthWest 1st Evaluation (Mitchell/DeAugustine)	September 4, 2025	Clean baseline evaluation...
HealthWest 2nd Evaluation (Gansen)	September 11, 2025	"Rule-out Delusional Disorder"...

8. VERIFICATION / SWORN STATEMENT

STATE OF MICHIGAN

COUNTY OF MUSKEGON

I, Andrew James Pigors, being first duly sworn, depose and state under penalty of perjury:

1. I am the Complainant in this matter and have personal knowledge of the facts stated herein.
2. The factual allegations in this Complaint are true and correct to the best of my knowledge, information, and belief.
3. The statements regarding court proceedings are based on my personal participation in those proceedings, review of court orders and transcripts, and analysis of documentary evidence in my possession.
4. This Complaint is not filed for any improper purpose, but solely to bring to the Commission's attention the conduct that I believe constitutes judicial misconduct warranting investigation and discipline.
5. I understand that filing a knowingly false complaint with the Michigan Judicial Tenure Commission may subject me to penalties under Michigan law.
6. The supporting documentation referenced herein is true and accurate and will be made available to the Commission upon request or as directed.

Date: _____

Signature: _____

[ANDREW: SIGN AND DATE]

Printed Name: Andrew James Pigors

Address: 1977 Whitehall Road, Lot 17, North Muskegon, MI 49445

Telephone: (231) 903-5690

Email: andrewjpigors@gmail.com

NOTARIZATION (JURAT)

STATE OF MICHIGAN

COUNTY OF _____

Subscribed and sworn to (or affirmed) before me on this _____ day of _____, 20____,
Andrew James Pigors, who is personally known to me or who produced identification.

Signature: _____

Notary Public, State of Michigan

County of _____

My Commission Expires: _____

Acting in the County of: _____

[NOTARIAL SEAL]

9. SIGNATURE

Andrew James Pigors, Complainant
1977 Whitehall Road, Lot 17
North Muskegon, MI 49445
Phone: (231) 903-5690
Email: andrewjpigors@gmail.com

[ANDREW: SIGN AND DATE]

FILING INSTRUCTIONS

File with:

Michigan Judicial Tenure Commission
3034 W. Grand Blvd., Suite 8-450
Detroit, Michigan 48202

Filing Fee: \$0.00 (JTC complaints are free to file)

Delivery: Send via U.S. Mail (First Class, Postage Prepaid) or personal delivery.

Confidentiality Notice: Minor child information has been redacted per MCR 8.119(H). The minor child referred to as "L.D.W." throughout this document.

This Complaint was prepared by Complainant pro se. All factual representations are made upon personal knowledge and belief. Complainant reserves the right to supplement this Complaint with additional evidence as it becomes available.

END OF COMPLAINT